ILLINOIS TECH | College of Computing

ITMM 485 / 585
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Legal and Ethical Issues in Information Technology

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Ch8: Intellectual Property Issues
P5: The Creative Commons & Ongoing Controversies

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Learning Objectives:

Upon completion of this lesson the students should be able to:

- Explain and discuss the philosophical and legal arguments used to protect intellectual property
- Describe the differences and similarities between the Free Software Foundation & the Open Source Initiative
- Explain how Creative Commons licensing of IP works
- Discuss the balance between public good and profit for IP rights holders

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Module Objectives:

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The Creative Commons (CC)

- The Creative Commons (CC), a nonprofit organization, was launched by Lawrence Lessig and others in 2001.
- CC aims at providing creative solutions to problems that current copyright laws pose for sharing information.
- CC expands the range of creative work available to others legally to build upon and share.

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CC (Continued)

- CC provides a set of licensing options that help artists and authors give others the freedom and creativity to build upon their creativity.
- Lessig (2004) points out that a "creative" scheme for licensing is needed because the current intellectual property rights regime does not make sense in the digital world.

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CC (Continued)

- CC does not aim to undermine copyright law.
- Lessig believes that there should be a way to maintain copyrighted works and still make it possible for people to license the use of those works.
- Traditional copyright regimes tend to promote an "all or nothing" kind of protection scheme with their "exclusive rights" clauses.
- Goetz (2004) notes that CC provides a middle ground because it makes possible a "some rights reserved" approach versus an "all rights reserved" policy.

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CC (Continued)

- Lessig believes that the Internet allows for an "innovation commons" and that the CC licensing schemes help to promote this vision.
- CC provides a menu of options in its licensing and contract schemes, available for free on its Web site.
- These enable copyright holders to grant some of their rights to the public while retaining others.

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CC (Continued)

- The CC menu provides four options:

1. **Attribution**—Permit others to copy, distribute, display, and perform the work and derivative works based upon it only if they give you credit;
2. **Noncommercial**—Permit others to copy, distribute, display, and perform the work and derivative works based upon it only for noncommercial purposes;
3. **Derivative works**—Permit others to copy, distribute, display, and perform only verbatim copies of the work, not derivative works based upon it;
4. **Share alike**—Permit others to distribute derivative works only under a license identical to the license that governs your work.

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CC (Continued)

- CC Licenses allow musicians to dictate how their music will be used – even if they sign with a record label (as long as the CC terms are part of the contract).
- Both artists and fans can benefit from the kinds of licenses made available through CC.
- The recording industry and other organizations that have benefited from the traditional copyright regime may lose some influence, power, and control because of the new licensing schemes made possible by CC.

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CC (Continued)

- With its creative and flexible licensing schemes, CC both encourages the flow of information in digital form and protects the legal rights and interests of artists and authors.
- Artists and authors can be recognized and rewarded, financially and otherwise, for their creative contributions, yet still share their works (or portions of their works) with others.
- This also supports Lessig's notion of an "innovation commons" because it allows authors and artists to build upon the works of others.

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CC (Continued)

- CC also helps to preserve the future of the commons, and it promotes the kind of spirit of cooperation and sharing among creators advocated by FSF and OSI.
- CC also provides an implementation scheme for our principle *information wants to be shared*, by helping us to frame intellectual property policies that avoid having either to:

a) endorse the view that information should be absolutely free,
b) support overly strong copyright laws that discourage sharing and innovation and also diminish the intellectual commons.

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Recent Legislation: PIPA, SOPA, and RWA

- In 2011, three controversial pieces of legislation threaten the information commons were introduced in the US Congress:
- PIPA (Protect Intellectual Property Act),
- SOPA (Stop Online Piracy Act),
- RWA (Research Work Act).

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PIPA and SOPA

- PIPA's and SOPA's supporters argued that stronger laws were needed to enforce copyright protection online and to crack down on pirates, especially those operating from Web sites in countries outside the US.
- Critics argued that SOPA and PIPA would grant the U.S. government, as well as some major corporations, broad powers that allow them to shut down Web sites that they merely suspect are involved in copyright infringement.
- Critics also worried that the government and corporations would be able to do this without first having to get a court order and go through the traditional process of having either a trial or court hearing.

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PIPA and SOPA (Continued)

- Following major (online) protests, the U.S. Congress decided to postpone voting on PIPA and SOPA.
- Although the bills were eventually shelved, they have not been abandoned by their original sponsors in Congress, and key supporters have vowed to introduce alternate versions in the near future.
- Some critics worry that the Cyber Intelligence Sharing and Protection Act (CISPA), introduced in Congress in 2012, is a "back door" effort to get PIPA- and SOPA-like legislation passed.

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RWA

- RWA (Research Works Act), also introduced in Congress in late 2011, focused mainly with scientific and academic research that was accessible online.
- RWA was designed to replace the National Institute of Health (NIH) Public Access Policy, which had mandated that any NIH research funded by U.S. tax payers would be freely available online.
- RWA's critics worried that future online access to important health information would be severely restricted.

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RWA (Continued)

- Some critics worry that RWA would not only block the sharing of important health-related information (generated by NIH grants), including the public availability of biomedical research results, but could also significantly restrict the sharing of much scientific and academic information in general.
- Other critics point out that taxpayers have already paid once for this research, via their taxes that funded NIH grants; so people wishing to access this information in the future would effectively be required to pay twice because of the new fees.

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RWA (Continued)

- RWA's opponents have also noted that many large (privately owned) publishing companies, who stood to gain financially, were staunch supporters of RWA.
- One of these companies, Elsevier Press, had contributed money to the political campaign for US Congressman Darrell Issa (a co-sponsor of the original RWA legislation).
- Elsevier became the target of an international boycott ("The Cost of Knowledge" Boycott) by academics and scientists, as described in Scenario 8-5 in the textbook.

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Intellectual Property Battles in the Near Future

- The current intellectual property disputes over digital information seem to be as contentious as ever.
- Copyright owners and corporations will likely continue to lobby the U.S. Congress for stronger copyright protections.
- Academic and library organizations will likely continue to argue for legislation that will favor online scientific and academic information being freely accessible to students and ordinary users.
- It is not yet clear how the information commons will ultimately be affected.

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